THE SOUTH ASIAN UNIVERSITY ACT, 2008

ARRANGEMENT OF SECTIONS

SECTIONS

1. Short title, extent and commencement.
2. Definitions.
3. Provisions of Agreement to have force of law.
4. Incorporation of South Asian University.
5. Jurisdiction.
6. Governing Board.
7. Objectives of University.
8. Powers of University.
9. University open to all persons.
10. Visitor.
11. Officers of University.
12. President and its powers.
13. Other officers.
14. Privileges and immunities of President and academic staff.
15. Authorities of University.
16. Executive Council.
17. Academic Council.
18. Constitution of other authorities.
19. Faculties and Departments.
20. Statutes.
21. Regulations**.**
22. Bye-laws.
23. Power to give retrospective effect to Statutes and Regulations.
24. Annual report.
25. Audit of accounts.
26. Conditions of service of employees.
27. Procedure of arbitration in disciplinary cases against students.
28. Proceedings of University authorities or bodies not invalidated by vacancies.
29. Protection of action taken in good faith.
30. Reference to SAARC Arbitration Council.
31. Statutes and Regulations and bye-laws to be published in Official Gazette and to be laid before Parliament.
32. Power to remove difficulties**.**

THE SCHEDULE

IndiaCode

THE SOUTH ASIAN UNIVERSITY ACT, 2008

ACT NO. 8 OF 2009

[11*th January*, 2009.]

An Act to give effect to the Agreement for the establishment of South Asian University and for matters connected therewith or incidental thereto.

WHEREAS an Agreement for the establishment of the South Asian University was signed on behalf of the respective Governments of the Member States of the South Asian Association for Regional Co-operation (SAARC) on the 4th day of April, 2007;

AND WHEREAS Article 1 of the said Agreement provides that the main campus of the University shall be located in India, therefore, it is expedient to make provisions for giving effect to the said Agreement;

BE it enacted by Parliament in the Fifty-ninth Year of the Republic of India as follows:—

1. Short title, extent and commencement.—(*1*) This Act may be called the South Asian University Act, 2008.

(*2*) It extends to the whole of India and to campuses and centres established outside India in the SAARC region.

(*3*) It shall come into force on such date as the Central Government may, by notification in the Official Gazette, appoint and different dates may be appointed for different provisions of this Act.

2. Definitions.—In this Act, unless the context otherwise requires,—

(*a*) "Academic Council" means the Academic Council of the University;

(*b*) "academic staff" means such categories of staff as are designated as academic staff by the Statutes;

(*c*) "Agreement" means the Agreement for the establishment of the South Asian University;

(*d*) "bye-laws" means the bye-laws of the University;

(*e*) "Centre" means a unit of the University or of a University Institute providing teaching, consultancy and research facilities and includes a Regional Centre;

(*f*) "employee" means any person appointed by the University and includes teachers and other staff of the University;

(*g*) "Executive Council" means the Executive Council of the University;

(*h*) "Faculty" means a Faculty of the University;

(*i*) "Governing Board" means a Governing Board of the University constituted under section 6;

(*j*) "Hall" means a unit of residence, by whatever name called, for students of the University provided, maintained or recognised by it;

(*k*) "Host Country" means the Republic of India;

(*l*) "Host Government" means the Government of the Host Country;

(*m*) "Member States" means the Member States of the SAARC;

(*n*) "prescribed" means prescribed by Statutes, Regulations or bye-laws;

(*o*) "President" means the President of the University appointed under section 12;

(*p*) "Project Office" means the project office set up for the purpose of carrying out necessary tasks for establishing the main campus of the University;

(*q*) "Recognised institution" means an institution of higher learning maintained or recognised by, or associated with, the University;

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(*r*) "Regional Centre" means a centre established or maintained by the University at any place in the SAARC region for the purpose of coordinating and supervising the work of campuses or centres in such region and for performing such functions as may be conferred on such centre by the Governing Board;

(*s*) "Regulations" means the Regulations of the University;

(*t*) "SAARC" means an organisation known as the South Asian Association for Regional Co-operation established by the Charter of the South Asian Association for Regional Co-operation signed on eighth day of December, 1985;

(*u*) "SAARC region" means the region comprising the territories of the Member States;

(v) "Schedule" means the Schedule of the Act;

(*w*) "Statutes" means the Statutes of the University;

(*x*) "teacher" means professor, reader, lecturer and research staff of the University appointed or recognised by the University for imparting instructions in the University or for giving guidance to students for pursuing any course of study of the University; and

(*y*) "University" means the South Asian University incorporated under section 4.

3. Provisions of Agreement to have force of law.—Notwithstanding anything contrary contained in any other law, the provisions of the Agreement set out in the Schedule shall have the force of law in India.

4. Incorporation of South Asian University.—(*1*) With effect from such date as the Central Government may, by notification in the Official Gazette, appoint in this behalf, there shall be established, for the purposes of giving effect to provisions of the Agreement, a University to be called as South Asian University.

(*2*) The University shall be a body corporate having perpetual succession and a common seal and shall sue and be sued by the said name.

(*3*) The Headquarters of the University shall be at Delhi.

(*4*) The University may establish or maintain campuses and centres at such other places within India and outside India in the SAARC region as it may deem fit.

5. Jurisdiction.—The jurisdiction of the University shall extend to whole of India and to campuses and centres established outside India in the SAARC region:

Provided that where the University establishes and maintains any campus or centre outside India at any place in the SAARC region, then the jurisdiction of the University shall extend to such campus or centre, subject to the provision of the Agreement and laws in force in any of the Member States within which such campus or centre is situated.

6. Governing Board.—(*1*) There shall be a Governing Board of the University consisting of two members from each of the Member States of the SAARC and the President of the University:

Provided that until the first Governing Board is formed, the Inter-Governmental Steering Committee of the SAARC shall function as an interim Governing Board.

(*2*) The Governing Board shall be headed by the Chairperson who shall be elected from amongst the members of the Governing Board.

(*3*) The members of the Governing Board shall be selected in such manner and for such term as provided in Article 5 of the Schedule.

(*4*) The President of the University shall be the *ex officio* member of the Governing Board.

(*5*) The Governing Board shall be responsible for all the policies and directions of the University and management of its affairs.

(*6*) The Chairperson of the Board shall exercise such powers as may be prescribed by the Statutes.

7. Objectives of University.—The objectives of the University shall be—

(*a*) to disseminate and advance knowledge, wisdom and understanding by providing instructional and research facilities in such branches of learning as it may deem fit;

(*b*) to take appropriate measures for promoting innovations in teaching-learning process, inter-disciplinary studies and application of knowledge to social advancement, and human welfare and to the promotion of regional peace and security;

(*c*) to impart liberal and humane education towards capacity building of the South Asian nations in the domain of science, technology and other areas of higher learning vital for improving their quality of life and to give students the analytical tools needed for the pursuit of profession and inculcate in them the quality of leadership;

(*d*) to foster in the students sound civic sense and to train them to become useful citizens of democratic societies;

(*e*) to build a South Asian community of learning where students from countries of South Asia are able to develop their fullest intellectual potential and to create a South Asian community by strengthening regional consciousness; and

(*f*) to harmonise the academic standards and accreditation norms in teaching, research and curriculum that are acceptable to all Member States.

8. Powers of University.—The University shall have the following powers, namely:—

(*i*) to provide for instruction in such branches of learning as the University may, from time to time, determine and to make provisions for research and for the advancement and dissemination of knowledge;

(*ii*) to establish such special centres and specialised laboratories and such other units for research and instruction as are necessary for the furtherance of its objects;

(*iii*) to plan and prescribe courses of study for degrees, diplomas, certificates or for any other purpose;

(*iv*) to grant, subject to such conditions as the University may determine, diplomas or certificates and confer degrees or other academic distinctions on the basis of examinations, evaluation or any other method of testing and to withdraw any such diplomas, certificates, degrees or other academic distinctions for good and sufficient cause;

(*v*) to confer honorary degrees or other distinctions in the manner prescribed by the Statutes;

(*vi*) to organise and to undertake open learning programmes, extramural studies, training and extension services;

(*vii*) to institute Chairs, principalships, professorships, readerships and lecturerships and other teaching and academic positions, required by the University and to appoint persons to such Chairs, Principalships, Professorships, Readerships and lecturerships and other teaching and academic positions;

(*viii*) to appoint visiting professors, Emeritus professors, consultants, scholars and such other persons who may contribute to the advancement of the objects of the University;

(*ix*) to recognise persons as Professors, Readers or Lecturers or otherwise as teachers of the University;

(*x*) to create administrative and other posts as the University may deem necessary from time to time and to make appointments thereto;

(*xi*) to lay down conditions of service of all categories of employees, including their code of conduct;

(*xii*) to establish and maintain campuses, Centres, Regional Centres as may be determined from time to time;

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(*xiii*) to admit to its privileges institutions situated within its jurisdiction as the University institutions and to withdraw all or any of those privileges in accordance with such conditions as may be prescribed by the Statutes;

(*xiv*) to co-operate or collaborate or associate with any other University or authority or institution of higher learning or any other public or private body, having in view the promotion of purposes and objects similar to those of the University, in such manner as may be prescribed and for such purposes as may be determined or agreed upon by the University;

(*xv*) to determine standards of admission, including examination, evaluation or any other method of testing, to the University, and the institutions maintained by or admitted to the privileges of the University;

(*xvi*) to demand and receive payment of fees and other charges as may be prescribed;

(*xvii*) to establish Halls and to recognise, guide, supervise and control Halls not maintained by the University and other accommodation for students, and to withdraw any such recognition;

(*xviii*) to make arrangements for promoting health and general welfare of students and employees of the University;

(*xix*) to regulate and enforce discipline among the students and the employees, and to take such disciplinary measures in this regard as may be deemed by the University to be necessary;

(*xx*) to institute and award Fellowships, Scholarships, Studentships and prizes;

(*xxi*) to receive benefactions, donations and gifts in accordance with the regulations made by the Governing Board as per norms of the SAARC and to acquire, hold, manage and dispose of any property, movable or immovable, including trust and endowment properties, for the purposes or objects of the University and to invest funds in such manner as it deems fit;

(*xxii*) to borrow, with the approval of the Governing Board, on the security of the University property, money for purposes of the University;

(*xxiii*) to recognise for any purpose, either in whole or in part, any institution or members or students thereof on such terms and conditions as may, from time to time, be prescribed and to withdraw such recognition;

(*xxiv*) to enter into any agreement for the incorporation of any other institution in the University and for taking its rights, properties and liabilities and for any other purpose not repugnant to this Act;

(*xxv*) to make provision for research and advisory services and for that purpose to enter into such arrangements with other institutions or bodies as it may deem necessary;

(*xxvi*) to provide for the printing, reproduction and publication of research and other work which may be issued by the University;

(*xxvii*) to exercise such other powers accorded to it under the Agreement; and

(*xxviii*) to do all such other acts as may be necessary, incidental or conducive to the promotion of all or any of the objects of the University.

9. University open to all persons.—The University shall be open to all persons irrespective of gender, caste, creed, disability, ethnicity or socio-economic background and it shall not be lawful for the University to adopt or impose on any person, any test whatsoever of religious belief or profession in order to entitle him to be appointed as a teacher of the University or to hold any office therein or be admitted as a student in the University or to graduate thereat or to enjoy or exercise any privilege thereof.

10. Visitor.—(*1*) The Foreign Minister of the current Chair of the SAARC shall be the Visitor of the University.

(*2*) The Visitor shall have such powers as may be prescribed by the Statutes.

11. Officers of University.—(*1*) There shall be a President of the University, and such other officers appointed in such manner as may be prescribed, who shall exercise such powers and functions as may be prescribed.

(*2*) The President shall be the Chief Executive Officer of the University.

12. President and its powers.—(*1*) The President shall be appointed by the Governing Board in such manner as may be prescribed by the Statutes:

Provided that until the President is appointed, the Chief Executive Officer of the Project Office shall exercise the powers of the President and function as Chief Executive Officer of the University.

(*2*) The President shall, as the Chief Executive Officer, exercise general supervision and control over the affairs of the University and shall be responsible for implementing the objectives of the University and fulfilling the policy directives of the Governing Board.

(*3*) The President may, if he is of the opinion that immediate action is necessary on any matter, exercise any power conferred on any authority of the University by or under this Act and shall report to such authority at its next meeting the action taken by him on such matter:

Provided that such exercise of power shall be made only in emergent situations and in no case in respect of creation and upgradation of posts, and appointments thereto:

Provided further that if the authority concerned is of the opinion that such action ought not to have been taken, it may refer the matter to the Governing Board whose decision thereon shall be final.

(*4*) The President, if he is of the opinion that any decision of any authority of the University is beyond the powers of the authority conferred by the provisions of this Act and the Statutes or that any decision taken is not in the interest of the University, may ask the authority concerned to review its decision within sixty days of such decision and if the authority refuses to review the decision either in whole or in part or no decision is taken by it within the said period of sixty days, the matter shall be referred to the Governing Board whose decision thereon shall be final.

(*5*) The President or any officer of the University, authorised by him in this behalf, shall have the power to enter into agreements, sign documents and authenticate records on behalf of the University.

(*6*) The President shall exercise such other powers as may be prescribed by the Statutes.

13. Other officers.—The manner of appointment and powers and duties of other officers of the University shall be such as may be prescribed by the Statutes.

14. Privileges and immunities of President and academic staff.—The University, the President and the members of the academic staff and, where applicable, their dependents or members of the family, shall enjoy such privileges and immunities as the Central Government may notify under section 3 of the United Nations (Privileges and Immunities) Act, 1947 (46 of 1947).

15. Authorities of University.—The following shall be the authorities of the University—

(*a*) the Executive Council,

(*b*) the Academic Council, and

(*c*) such other authorities as may be declared by the Governing Board in the Statutes to be the authorities of the University.

16. Executive Council.—(*1*) The Executive Council shall be the executive body of the University and shall exercise powers to give effect to the directions or decisions of the President and the Governing Board.

(*2*) The constitution of the Executive Council, the term of office of its members and its powers and functions shall be such as may be prescribed by the Statutes.

17. Academic Council.—(*1*) The Academic Council shall be the principal academic body of the University and shall, subject to the provisions of this Act, the Statutes and Regulations, co-ordinate and exercise general supervision over the academic policies of the University.

(*2*) The constitution of the Academic Council, the term of office of its members and its powers and functions shall be such as may be prescribed by the Statutes.

18. Constitution of other authorities.—The constitution of the authorities under clause (*c*) of section 15, the terms of the office of the members of such authorities and their powers and duties shall be such as may be prescribed by the Statutes.

19. Faculties and Departments.—(*1*) The University shall have such faculties as may be prescribed by the Statutes.

(*2*) Each Faculty shall have such Departments or Schools of Studies as are prescribed by the Statutes, and each Department or Schools of Studies shall have such subjects of study as may be assigned to it by Regulations.

20. Statutes.—(*1*) Subject to the provisions of this Act, the Statutes may provide for all or any of the following matters, namely:—

(*a*) powers of the Visitor;

(*b*) powers of the Chairperson of the Governing Board;

(*c*) manner of appointment of the President and its powers;

(*d*) the constitution, powers and functions of the Executive Council, Academic Council and other authorities and bodies of the University;

(*e*) categories of academic staff;

(*f*) appointment of teachers, academic staff and other employees of the University;

(*g*) establishment of faculties of the University;

(*h*) the conditions under which institution may be admitted to the privileges of the University and the withdrawal of such privileges;

(*i*) the conferment of honorary degrees;

(*j*) delegation of powers vested in the authorities or officers of the University;

(*k*) setting up of a machinery for redressal of grievances between employees or the students and the University; and

(*l*) all other matters which by this Act are to be or may be provided for by the Statutes.

(*2*) The First Statutes shall be those as may be made for the operation of the University by the Inter-Governmental Steering Committee of the SAARC.

(*3*) The Governing Board may, from time to time, make new or additional Statutes or may amend or repeal the Statutes referred to in sub-section (*2*):

Provided that the Governing Board shall not make, amend or repeal any Statute affecting the status, powers or constitution of any authority of the University until such authority has been given an opportunity of expressing an opinion in writing on the proposed changes, and any opinion so expressed has been considered by the Governing Board.

21. Regulations.—(*1*) Subject to the provisions of this Act and the Statutes, the Regulations may provide for all or any of the following matters, namely:—

(*a*) the admission and enrolment of students to the University and institutions maintained by, or admitted to, the privileges of the University;

(*b*) the courses of study to be laid down for all degrees, diplomas and certificates of the University;

(*c*) the medium of instruction and examination;

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(*d*) the award of degrees, diplomas, certificates and other academic distinctions, the qualifications for the same and the means to be taken relating to the granting and obtaining of the same;

(*e*) the fees to be charged for courses of study in the University and for admission to the examinations, degrees and diplomas of the University;

(*f*) the institution of, and conditions for award of, fellowships, scholarships, studentships and prizes;

(*g*) the conduct of examinations, including the term of office and manner of appointment and the duties of examining bodies, examiners and moderators;

(*h*) the conditions of residence of students of the University;

(*i*) the special arrangements, if any, which may be made for the residence, discipline and teaching of women students and the prescribing of special courses of studies for them;

(*j*) the establishment of Centres, University Institutes, Departments, Schools of Studies, Boards of Studies, specialised laboratories and Committees;

(*k*) the creation, composition and functions of any other body which is considered necessary for improving the academic life of the University;

(*l*) the manner of co-operation and collaboration with other Universities, institutions and other bodies or associations; and

(*m*) all other matters which by this Act or the Statutes are to be or may be provided for by the Regulations.

(*2*) The First Regulations shall be made by the Chief Executive Officer of the Project Office with the prior approval of the Inter-Governmental Steering Committee and the Regulations so made may be amended, repealed or added to any time by the Governing Board in the manner prescribed by the Statutes.

22. Bye-laws.—The authorities of the University may make bye-laws consistent with this Act, the Statutes and the Regulations for the conduct of their own business and not provided for by this Act, the Statutes or the Regulations, in the manner as may be prescribed by Statutes.

23. Power to give retrospective effect to Statutes and Regulations.—The power to make Statutes or Regulations shall include the power to give retrospective effect, from a date not earlier than the date of commencement of this Act, to the Statutes or Regulations or any of them but no retrospective effect shall be given to any Statute or Regulation so as to prejudicially affect the interests of any person to whom such Statute or Regulation may be applicable.

24. Annual report.—(*1*) The annual report of the University shall be prepared under the direction of the Governing Board and shall be considered by the University at its annual meeting. The annual report of the University shall also be presented to the session of the Council of Ministers of the SAARC.

(*2*) The annual report of the University shall be circulated to all the SAARC Member States through the SAARC Secretariat.

25. Audit of accounts.—(*1*) The accounts of the University shall, once at least in every year and at intervals of not more than fifteen months, be audited by any person or firm authorised by the Governing Board.

(*2*) The accounts of the University shall be audited, as per existing norms as laid down by the SAARC.

(*3*) The accounts, when audited shall be published, and a copy of the accounts together with the audited report shall be submitted to the Secretary-General of the SAARC.

26. Conditions of service of employees.—(*1*) Every employee of the University shall be appointed under a written contract, which shall be lodged with the University and a copy of which shall be furnished to the employee concerned.

(*2*) Any dispute arising out of the contract between the University and any employee shall be referred to the Tribunal for Arbitration constituted for that purpose.

(*3*) The decision of the Tribunal shall be final and no suit shall lie in any court in respect of the matters decided by the Tribunal.

(*4*) The procedure for regulating the work of the Tribunal under sub-section (*2*) shall be prescribed by the Statutes.

27. Procedure of arbitration in disciplinary cases against students.—Any dispute arising out of any disciplinary action taken by the University against a student shall, at the request of such student, be referred to a Tribunal for Arbitration and the provisions of sub-sections (*2*), (*3*) and (*4*) of section 26 shall, as far as may be, apply to the reference made under this section.

28. Proceedings of University authorities or bodies not invalidated by vacancies.—No act or proceedings of the University or any of its authorities or bodies shall be invalid merely by reason of the existence of a vacancy or vacancies among its members.

29. Protection of action taken in good faith.—No suit or other legal proceeding shall lie against the University, any of its officers or employees for anything which is in good faith done or intended to be done in pursuance of any of the provisions of this Act.

30. Reference to SAARC Arbitration Council.—All differences arising out of the interpretation or application of the Agreement shall be referred to the SAARC Arbitration Council, unless in any case it is agreed by the parties to have recourse to another mode of settlement.

31. Statutes and Regulations and bye-laws to be published in Official Gazette and to be laid before Parliament.—(*1*) The Statutes, Regulations and bye-laws made under this Act shall be published in the Official Gazette.

(*2*) Every Statute, Regulation or bye-law made under this Act shall be laid, as soon as may be after it is made, before each House of Parliament.

32. Power to remove difficulties.—(*1*) If any difficulty arises in giving effect to the provisions of this Act, the Central Government may, by order published in the Official Gazette, make such provisions, not inconsistent with the provisions of this Act, as appear to it to be necessary or expedient for removing the difficulty:

Provided that no such order shall be made under this section after the expiry of the period of three years from the commencement of this Act.

(*2*) Every order made under sub-section (*1*) shall be laid, as soon as may be after it is made, before each House of Parliament.

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THE SCHEDULE

(*See* section 3)

PROVISIONS OF THE AGREEMENT TO HAVE THE FORCE OF LAW

Article 1

Establishment of the South Asian University

1. There is hereby established an institution to be known as the South Asian University (hereinafter referred to as the "University"), which shall be a non-state, non-profit self governing international educational institution with a regional focus for the purposes set forth in this agreement and shall have full academic freedom for the attainment of its objectives.

2. The main campus of the University shall be located in India.

3. The University shall have full legal Personality.

4. The legal capacity of the University shall, *inter alia*, include:

(*a*) the power to confer degrees, diplomas and certificates;

(*b*) the capacity to contract;

(*c*) to sue and be sued in its name;

(*d*) to acquire, hold and dispose of properties;

(*e*) to establish campuses and centres in the region; and

(*f*) to make rules, regulations and bye-laws for the operation of the University.

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Article 2

Objectives and Functions of the South Asian University

The objectives and functions of the University shall, *inter alia*, include:

1. To create a world class institution of learning that will bring together the brightest and the most dedicated students from all countries of South Asia irrespective of gender, caste, creed, disability, ethnicity or socio-economic background to impart to them liberal and humane education and to give them the analytical tools needed for the pursuit of a profession and inculcate in them the qualities of leadership.

2. To build a South Asian community of learning where every student will be able to develop her/his fullest intellectual potential and to create a South Asian community by strengthening regional consciousness.

3. To impart education towards capacity building of the South Asian nations in the domain of science, technology and other areas of higher learning vital for improving their quality of life.

4. To contribute to the promotion of regional peace and security by bringing together the future leaders of South Asia, and enhancing their understanding of each others' perspectives.

5. To foster in the students sound civic sense and to train them to become useful citizens of democratic societies.

Article 3

Funding

The University shall be non-profit public-private partnership, which will seek support from each of the national Governments of member states and from other sources but will be autonomous and accountable to its board of trustees/governors.

Article 4

The Fiscal Status

1. The University and its campuses and centres shall be exempted, in the state where it is located, from paying and from collecting all direct and indirect forms of taxes and duties for the establishment and operations of the University.

2. The University shall enjoy treatment in relation to priorities, rates and charges for utilities that are not less favourable than that accorded to state owned enterprises and universities.

3. The University has the right to accept *inter vivos* as well as testamentary gifts, contributions, and donations in cash or in kind for the objectives of the University. All such gifts and donations from any legal or physical person are fully deductible without any limit against the income of such donor or contributor in the respective Founding States.

4. Taxation and social protection of the citizens of the Founding States employed by the University shall be regulated in accordance with the respective national legislation of the respective States. The employees of the University from countries other than the host country will be governed by the income-tax laws of the home countries and will not be taxed as per the laws of the host country.

Article 5

Governance Structure

1. The University shall be governed by a Governing Board, composed of two members from each member state, and will be headed by a Chairperson. The Chairperson shall be elected from among the members of the Governing Board.

2. Each member of the Governing Board shall serve office for a fixed term of three years and shall not hold office for more than two consecutive terms. The members shall be selected from amongst the distinguished persons from the region and shall be responsible for the overall policies and directions of the University. The powers and functions of the Chairperson of the Governing Board and the role of the Board shall be decided as per the rules and regulations of the University.

3. The University shall be headed by a President, appointed by the Governing Board. The appointment, tenure, powers and functions shall be decided as per the rules and regulations of the University.

4. The President shall also be the Chief Executive Officer (CEO) and an *ex officio* member of the Governing Board. The President as the CEO of the University, will report to the Board and hold office at the pleasure of the Board. He will be responsible for implementing the vision and the foundation statement of the University, ensuring the purpose and objectives of the University, upholding uniformly high academic standards, and fulfilling the policy directives of the Board of the University.

5. The President as the Chief Executive Officer of the University shall act under direction of the Governing Board. The President shall be assisted by an Executive Council. The President shall constitute the Academic Council, different committees and appoint the principal officers of the University as per bye-laws.

Article 6

Visa and Resident Permit

The Member States shall provide appropriate visas to the students, faculty and staff for travel in all the SAARC Member States and grant necessary resident permit for students, faculty and administrative staff to work in the University and its different campuses, centres and collaborative educational institutions.

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Article 7

Recognition of the Degrees

This Agreement shall facilitate the mutual recognition of degrees and certificates awarded by the University in all the SAARC Member States at par with the degrees and certificates issued by their respective national universities/institutions.

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